

Calaveras Superior Court
Civil Law & Motion Calendar Tentative Rulings
Friday, July 2, 2021, Courtroom 2
Hon. David M. Sanders

9:00 AM	16CV41853 / 18PR8058	Demurrer Hearing	09/01/2016	07/23/2021	Motion Hearing;
				08/18/2021	Case Management Conference
XComp:	Shulz, Elizabeht		Atty:	Sternfeld, David I.	
XDefs:	Hyatt, Dylan P.		Atty:	Huber, Jonathan Paul	
Decedent:	Hughes, Jonathan				

TENTATIVE RULING: Cross-Defendant/Personal Representative Dylan P. Hyatt demurs, pursuant to Code of Civil Procedure section 430.10 (d), (e), and (f), to Elizabeth Schulz' Amended Cross-Complaint in both of these actions on the grounds that the cause of action set forth therein is based on misjoinder of parties, fails to state facts sufficient to state a cause of action, and is uncertain, ambiguous and unintelligible.

Defendant has not complied with Local Rule 3.3.7 enacted January 1, 2018, by failing to include the mandatory language in the notice of demurrer regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon defendant's failure to comply with Local Rule 3.3.7, the demurrer is OVERRULED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to all relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

9:00 AM	20CV45004	Plaintiff's Motion for Monetary Sanctions/Atty Fees for Def's FTA at Deposition; for Order Compelling Future Deposition	11/02/2020	07/21/2021	Case Management Conference
		Event Fee Required \$435.00 answer fee			
Ptff/Pet:	Giffin, Robin A		Atty:	Kruse Law Corporation	
Def/Res:	Vasconcellos, Steven Crane		Atty:	Pro Se	

TENTATIVE RULING: Plaintiff Robin A. Giffin moves, pursuant to Code of Civil Procedure sections 2023.010, et seq., 2025.450, and 2025.480, for monetary sanctions for Defendant Steven C. Vasconcellos' failure to appear at his duly noticed deposition and for an order compelling Defendants' deposition. Defendant has not filed any opposition.

Plaintiff served a proper amended notice of deposition concerning which defendant did not serve any objection and for which defendant did not appear. This nonappearance without any proper legal basis cause plaintiff to incur unnecessary expenses of time and money.

Good cause appearing, and no opposition having been filed, the motion is GRANTED. Defendant is ordered to appear for a deposition on a day and time of plaintiff's choosing during the week of July 19, 2021, at the offices of California Deposition Reporters (2453 Grand Canal Boulevard in Stockton). Sanctions are awarded in the total amount of \$1,029.00 (attorney's fees of \$600 [2 hours at \$300 per hour, i.e., the customary rate in this market], court reporter appearance fee of \$275, filing fee of \$60, and CourtCall fee of \$94).

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

Ptff/Pet: Barr, Howard Todd
Def/Res: County of Calaveras;
County of Calaveras

Atty: Shepardson, John Arthur
Atty: Angelo, Kilday & Kilduff;
Sanders, Serena Mercedes

TENTATIVE RULING: Defendant County of Calaveras moves, pursuant to Code of Civil Procedure sections 2019.020 (b), 2019.030 (1), and 2025.420 (b), for a protective order placing conditions and limitations on discovery conducted by Plaintiff. Specifically, "Defendant requests the Court issue a protective order limiting questioning to a maximum of four hours, directing Plaintiff's counsel to prioritize areas of inquiry needed to oppose [Defendant's pending Motion for Summary Judgment], and limiting the questioning to the valid topics of inquiry not previously covered in the first day of PMQ deposition. (See Motion at 2:7-11.)

Defendant presents evidence that, in response to Plaintiff's deposition notice of Defendant's person most qualified (PMQ), Defendant produced Judy Hawkins for seven hours of questioning on April 22, 2021. (See Declaration of Serena Warner at ¶¶ 11 and 12, and Exhs. C and E.) Defendant asserts that Plaintiff seeks to depose Ms. Hawkins, as Defendants' PMQ, further, an assertion confirmed by plaintiff's companion motion to compel further PMQ testimony.

Defendant indicates it will produce Ms. Hawkin for this purpose. (Support Memo at 8:8-8.) However, Defendant first asks the Court to limit the second session of Ms. Hawkins' PMQ deposition to four hours. Based on the evidence produced by Defendant, the Court finds that limiting the PMQ deposition of Ms. Hawkins to eleven total hours of questioning is necessary to protect her from undue burden in light of the needs of the case, the amount in controversy, the number and complexity of matters at issue through the pleadings on which she has been asked to testify, and the importance of those issues. (See Code Civ. Proc., § 2019.030 (a)(2 and CCP § 2025.420 (b)(5).)

Plaintiff appears to concede that four additional hours are sufficient and/or that so limiting the deposition is appropriate by failing, in his opposition papers, to address Defendant's request for such limit.

Defendant next asks the Court to direct Plaintiff's counsel, in the conduct of the reconvened PMQ deposition, to prioritize those areas of inquiry that Plaintiff needs to oppose Defendant's pending Motion for Summary Judgment and to limit the questioning to valid topics of inquiry not previously covered in the first session of the PMQ deposition. The Court declines to so instruct or limit counsel's questioning. Plaintiff has an additional four hours to depose Defendant's PMQ and counsel is free to prioritize questioning during those hours in whatever way he feels best serves his case. His failure to oppose the requested limitation suggests that this additional time is adequate to permit questioning on all reasonably necessary matters, whether for purposes of opposing an MSJ or in prosecuting the case. The Court finds no grounds for either (1) dictating to Plaintiff his priorities in this regard, or (2) prohibiting Plaintiff from using his allotted time to follow up on topics previously covered.

The Court notes Defendant's concern that Plaintiff will seek another continuation of the hearing on Defendant's pending motion for summary judgment. (See, e.g., Support Memo at 2:14-15.) No such request is currently before the Court. Defendant's concern about the possibility that Plaintiff will make such request in the future is insufficient grounds for the Court to dictate the details of Plaintiff's examination of Defendant's PMQ.

Based on the foregoing, the motion is GRANTED IN PART. The Court orders that the deposition of Judy Hawkins, in her capacity as Defendant's PMQ, shall be limited to a total of eleven hours. The motion is denied in all other respects.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.